RITA MARQUE MBATHA
versus
FARAI BWATIKONA ZIZHOU
and
CONFEDERATION OF ZIMBABWE INDUSTRIES

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 23 July, 17,19 September, 2 October 2024, 28, 29 January, 26, 27 February 2025, 12 March 2025, 26 March 2026



Civil Trial

Plaintiff in person
H. Mutasa, for the second defendant

CHITAPI J: This matter is an action brought by Rita Marque Mbatha, an adult female of Harare as the plaintiff against Farai Bwatikona Zizhou, an adult male of Harare as the first defendant and Confederation of Zimbabwe Industries a body corporate registered and operating in terms of the laws of Zimbabwe as the second defendant. The action was filed on 18 June, 2014. Eleven eventful years later, the trial was finally held before me. This is my judgment on the dispute between the parties.

The plaintiff sued the defendants for payment of US$ 500 000.00 as general damages for "shock, non-patrimonial damages post traumatic disorder, pain and suffering", interest thereon at the prescribed rate and costs of suit. The defendants entered appearance to defend.

The background to this case is largely common cause. The plaintiff was employed by the second defendant and according to her, she reported to the first defendant who was the Chief Executive of the second defendant. The plaintiff alleged that she was employed in the position of personal assistant to both the President of the second defendant and to the first defendant. The plaintiff in claiming the damages averred that they arise from acts of sexual harassment perpetrated upon her by the first defendant during the short tenure of her employment which ran from September 2002 until her dismissal in July, 2003. The dismissal was held by the courts to

have been unfair. The plaintiff's case in that regard was separately dealt with by the relevant courts and concluded.

The plaintiff as pleaded in the declaration and narrated by her in evidence averred that the first defendant sexually harassed her in one or more or all of the following ways:

(a) Inappropriately being touched
(b) Unwelcome offensive jokes
(c) Innuendo and offers of inappropriate sexual relationships
(d) Being sent offensive messages on her cellphone
(e) Being sent pornographic pictures on her computer
(f) Attempted forced kissing which on one occasion resulted in the plaintiff hurting herself on the thigh as she was resisting

The way that this matter progressed needs outlining. The first and second defendants defended the suit and filed their pleas. Along the way the first defendant was barred. The plaintiff applied for default judgment against the first defendant. MAFUSIRE J dealt with the matter and under judgment number HH 675/21 dated December 2021granted the plaintiff as against the first defendant damages for sexual harassment in the sum of US$180 000.00 to be converted to local currency at the inter-market bank rate at the time of payment. The learned judge pointedly described the damages as follows at page 13 of the cyclostyled judgment:

> "[31] Taking all factors into account, it is considered that the proper level of damages for the sexual harassment perpetrated by the first defendant upon the plaintiff during the period of the plaintiff's employment with the second defendant from September 2002 to June 2003 is USD 180 000.00 [one hundred and eighty thousand united states dollars…"

For clarity, the judgment did not as much as MAFUSIRE J stated so, determine the liability of the second defendant.

At the commencement of hearing of the matter, on 2 October 2024 *Mr Mutasa* for the second defendant submitted that there was an outstanding point *in limine* to be argued, namely, that the summons did not disclose a cause of action against the second defendant. I will not give the details of the exception because the parties agreed on an order by consent wherein the exception was upheld and the plaintiff was granted leave to amend her declaration. The matter was removed from the roll by consent to enable the plaintiff to file the amendment, for the respondent to respond, for parties to consider and amend the issues for trial and for filing of any

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supplementary summaries of evidence whereafter either party could reset the matter for trial. The gravamen of the consent order was set out in para 2 of the order which reads as follows:

> "2. The plaintiff is granted seven (7) days within which to amend her declaration to detail basis on which she holds the first defendants' pleaded wrongs."

The plaintiff duly filed her amended declaration. She pleaded therein that the second defendant's liability was vicarious since it was the employer of the first defendant. She pleaded as follows in para 2 of the amendment to the declaration:

> "As the second defendants employer Confederation of Zimbabwe Industries was under a legal duty to its employees in particular to the plaintiff to create and maintain a working environment in which the dignity of its employees would be respected and amongst other things to take all reasonable steps to prevent its employees from being sexually harassed by other employees in their working environment."

The plaintiff pleaded the further or amplified basis for holding the second defendant to be vicariously liable for the first defendant's actions in more detail in para 5 of the same amendment to the declaration as follows:

> "5. There was a negligent breach by employer of legal duty to maintain working environment in which employees not (sic) subject to sexual harassment. This duty had been breached because there had been a wrongful and negligent failure to prevent the second defendant from sexually harassing the plaintiff. Further
> (a) The second defendant's President failed to come to the assistance of the [plaintiff] notwithstanding her report and instead alleged that as a married woman she should be ashamed to report sexual harassment.
> (b) Failed to act against the [first defendant] notwithstanding the fact that she had reported the sexual harassment.
> (c) Failed to deal with allegations of sexual harassment against the [second (sic) defendant] seriously and expeditiously.
> (d) Permitted the [second (sic) defendant] wide latitude in his conduct towards the [plaintiff]
> (e) Failed to create a climate in the workplace in which the victims of sexual harassment in particular the [respondent sic] would not feel that their grievances were not being ignored.
> (f) Failed to take all or any reasonable steps to preserve and protect the bodily integrity, psychological well-being mental tranquility and dignity of the plaintiff.
> (g) The first defendant was acting in the course of his employment and the scope of his duties as an employee and
> (h) Failed to prevent the [first defendant's] sexual harassment of [plaintiff] when such could and should have been prevented."

The plaintiff also reduced the quantum of her claimed damages from $500 000.00 to "the sum of USD180 000 or the equivalent thereof in local currency convertible at the inter market rate at the time of payment.

The second defendant filed an amended plea in which it pleaded in para 2 thereof as follows:

"2. By the deletion of para 3 and substitution thereof with the following**2.1**
Ad para 5-6(a)
Except to deny that the plaintiff reported directly to the second defendant's President, no issues arise."

On the substance of the alleged grounds to found vicarious liability the second defendant pleaded in denial that.

(a) it did not have any knowledge of the alleged sexual harassment and denied it.

(b) there existed the alleged legal duty to maintain a sexual harassment free working environment.

(c) it did not take steps to ensure a safe working environment and averred that it took reasonable steps to ensure the existence of a safe and conducive working environment.

(d) the first defendant acted on his own frolic and thus vicarious liability did not arise. It averred as follows in para 3-4 of the amended plea.

"3.4 if indeed the first defendant perpetrated the alleged acts of sexual harassment, then he was clearly acting on a frolic of his own, therefore the second defendant denies any vicarious liability for the first defendant's conduct which was obviously not during the course and within the scope of his employment with the second defendant."

On the alleged negligent failure by the second defendant to prevent the second harassment, the second defendant pleaded as follows:

"3.5 The second defendant denies that it negligently failed to prevent the plaintiff from being sexually harassed and puts the plaintiff to strict proof of that allegation. In addition, the second defendant avers that:
(i) it has no record of any report being made to its President as alleged, and
(j) at all material times had reasonable measures in place to maintain a conducive work environment. It specifically denies that, it at any stage aided and/or abetted the alleged errand (sic) behaviour of the first defendant."

The plaintiff in the response or replication averred that the duty of care which the second defendant had denied in its plea existed by reason of both the common law duty of the employer to take reasonable care of the safety of the employees and by reason of the provisions of s 8(h) of the Labour Act [Chapter 28:01]. The plaintiff denied that the plaintiff ensured a safe working environment contrary to its assertion. The plaintiff averred that the second defendant did not act on the report of sexual harassment made by the first defendant and it further engaged or paid for the legal representation of the first defendant to contest the sexual harassment complaint made by the plaintiff. The plaintiff also averred that the sexual harassment happened at the workplace, during work time and after working hours and that the employer's rules and regulations did not "favour" sexual harassment. The plaintiff persisted that she reported the sexual harassment to the President of the second defendant who ignored her protests and no action was taken against the first defendant.

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The parties recast the issues for trial thereafter in a joint pre-trial conference minute filed 7 November 2024 as follows: "ISSUES

1.1 Whether or not the plaintiff was sexually harassed by the first defendant.

1.2 Whether or not second defendant was aware of the sexual harassment.

1.3 If the answer to issue Number 1.2 is in the affirmative whether or not the second defendant had a legal duty to protect the plaintiff against sexual harassment?

1.4 If the answer to issue Number 1.3 is in the affirmative whether or not the second defendant breached the legal duty to protect the plaintiff against sexual harassment?

1.5 Whether or not second defendant is vicariously liable for damages to the plaintiff arising from the alleged sexual harassment.

1.6 If the answer to 1.5 above is in the affirmative, what is the quantum of those damages.

In furtherance of her case, the plaintiff testified in person. She testified that she stood by her pleadings and gave a brief account as follows:

She stated that she had already obtained judgment against the first defendant and been paid. She stated on the first issue of whether or not she was sexually harassed that the issue had been determined in her favour in arbitration proceedings and that the arbitrator's finding is still extant. She further stated that her claim to being sexually harassed was confirmed by the Supreme Court in judgment SC 69/2018. The plaintiff averred that the second defendant was aware of the sexual harassment and admitted so in the arbitration proceedings where it averred that it acted on the sexual harassment. She testified that the second defendant unsuccessfully tried to appeal under case No SC 606/24 but the appeal was dismissed when the second dependant failed to pay security for costs. She confirmed that she was sexually harassed by the first defendant after two weeks of the same month of September 2002 that she joined the employ of the second defendant. She previously knew the first defendant when she was doing computer lessons. The period was not stated. She however stated that the first defendant only made advances after she had joined the employ of the second defendant.

When asked as to who was in charge of issues of administration, the plaintiff replied that it was the first defendant and that at all material times the second defendant was a small organization. She agreed that there was an executive committee of about six or seven persons in place. She claimed to have acted as secretary at its meetings. The executive committee had the President of the second defendant as the senior person. The plaintiff described how the sexual harassment was perpetrated upon her. The first defendant would send her suggestive e-mails and text messages, she stated that messages were sent on her work computer. This happened at a time that the plaintiff's father was seriously ill. She was the only family bread winner. She stated that the pressure on her was too much. She did not report the sexual harassment at that time out of fear of losing her job.

The plaintiff averred that she eventually made a report to the second respondents President Anthony Mandiwanza. In addition to e-mails and other messages, the plaintiff testified that the first defendant attempted to kiss her in the office. In the process of offering resisting, she hit her thigh against a desk. She sustained an injury from which she bled. She stated that the first defendant would ask her to remain after hours and would then sexually harass her. The plaintiff also referred to an e-mail in which the first defendant stated that he always thought about her when bathing. She stated that she saved the e-mails on her work computer. She discovered one such email sent in January 2003. The first defendant in the e-mail also wrote that he was having

trouble at work because of favours which he was advancing to her. She stated that the relations between her and the first defendant soured after she had forwarded the e-mail to the President of the second defendant.

When asked to explain why she placed liability of the first defendants conduct upon the second defendant, she responded that she reported the sexual harassment to the President in January 2003 and gave him the e-mails and other evidence of what had been done to her. She stated that in response the President answered that the first defendants reported conduct was unacceptable and would be investigated. There was no feedback until she followed upon on the issue with the President who then responded to her verbally that being a married woman, she should be ashamed to report that she was sexually harassed. She testified that nothing further was done or said about her report. She agreed that the liability of the second respondent would arise after her report to the President as then the second respondent was expected to take corrective action but did not do so.

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When asked whether the first defendant was not on a frolic of his own when sexually harassing the plaintiff, the plaintiff responded that the second defendant did not bring the first defendant to account after she reported her own account to the President and that the conduct of the first defendant took place at the work place. The e-mail complained of and sent by the first defendant to the plaintiff on 8 January 2003 at 0016 hours reads as follows:

> "Rita,
>
> I have used the above caption just in case. Please delete completely immediately after reading. Look. at the time l am sending this note - just to show you I could not sleep before writing this note to you.
> Rita, I love you very much and wish you could mine.
> When I am taking a bath with Clara, I always pretend it's you the torture is unbearable. It hurts me that when I touch your lovely hand you cringe and ask me to stop. Do I repulse you? I desperately need to kiss you.
> Shamwari if I do get dismissed, it will be because I would like to do whatever 1 can for the person, I care for most, you. Right now. l am under pressure to balance the budget of CZI. You have just completed your probation and according to CZI rules, you are not eligible for the general increase for permanent staff, but the small adjustment that is in your appointment

> letter. I am bending the rule - for you, please hold on tight to me - if we crash, we crash together. I am awarding you the same percentage increase as everybody else. I am defending it against the treasurer this morning. Doing so will cost CZI an extra $3 million in employment and other costs for the three people involved. The others are lucky to be associated with you. This will wipe out the surplus we were going to make after selling the Land Rover. The treasurer had made his recommendation following the rule and I have asked Venek! ai to make the change before he comes for the final meeting this morning.
>
> I feel guilty as it is no right to expropriate you from your husband but unfortunately ……Please God help me on this one as it has been giving me sleepless nights. You are the love of my love. I will do anything for you."

When asked whether the e-mail did not show that the first defendant was on a frolic of his own, the plaintiff responded that the e-mail indicated that the matter of her salary would be tabled at the formal meeting of the second respondent. In re-examination the plaintiff stated that the second defendant aligned with and paid for the legal representation of the first defendant in proceedings relating to the plaintiff's complaints on sexual harassment. The plaintiff's account was clearly given and was easy to follow. She closed her case.

The second defendant called two witnesses, namely, Amen Magwayi and its erstwhile President Anthony Mandiwanza. Magwayi did not have much to say. He testified that he only joined the second defendants employ on 6 April 2022 as administration manager. He testified that he is in charge of the "financial health" of the company, administration and Human Resources. In relation to the facts to do with this matter, he testified that he relied on records for information. He was asked to outline the organogram of the second defendant. He referred to the constitution of the second defendant which is part of discovered documents. He stated that records which he did not produce nor discover showed that the plaintiff was employed as the personal assistant to the Chief Executive Officer (CEO) and reported to the CEO. He stated that from the records there was no indication that the plaintiff raised a sexual harassment complaint against the CEO. He stated that the second defendant did not tolerate sexual harassment and that where such has occurred the victim is expected to register such a complaint with the victims immediate superior or senior. When asked to comment on the plaintiff's assertion that she left the second defendants' employ because of sexual harassment the witness responded that the plaintiff left because of a case against her. The witness also testified that the plaintiff did not report to any of the executive committee members. He testified that there was a disciplinary enquiry which involved the plaintiff and another employee. He referred to the record of the

enquiry which showed that there was an issue of alleged fighting at the workplace involving plaintiff and one Doreen. The witness testified that the first defendants' alleged conduct against the plaintiff was unacceptable to the second defendant and that the first defendant resigned from the employment.

Under cross examination by the plaintiff, the witness did not know when the alleged sexual harassment policy he spoke to came into being. When asked why the second defendant paid legal fees for the first defendant in the dispute with the plaintiff the witness responded that he was not aware of such fact. When challenged that he was not qualified to give evidence on the matter on behalf of the second defendant, he responded that he could only answer on matters arising from records of the second defendant. When it was put to him that the Supreme Court had ruled that she was unlawfully dismissed and was not guilty of disciplinary issues as testified to by the witness, he responded that he was not competent enough to comment. He stated that he

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had no comment on the result of Labour Court proceedings. When asked about the procedure that obtained following a report of sexual harassment being made, he answered that "his own comment" was that the plaintiff did not raise the issue with executive committee members to whom she had access.

The second defendant next called Anthony Mandiwanza who was its President from 20032005. He testified that his role was at directorship level which entailed the giving of policy guidelines and advice. He was a non-executive President. He did not recall dealing with the plaintiff nor interacting with her during her employment with second defendant. He stated that he recalled that she came to his office post the period of his presidency. He could not say when. He testified that he did not recall the specific issue which she came to report. He did not recall a report of sexual harassment being made to him. He stated that the plaintiff would have followed the ladder of authority in making her report as provided by the grievance procedure, that is a report being made at the lowest level and it cascades to the highest level. He testified that no

employee ever came to him with work related issues given his level. He denied that the plaintiff reported to him and stated that being the personal assistant of the CEO, she would not report to him.

When asked to comment on the allegation by the plaintiff that the second defendant did not protect her, the witness responded that all employees were treated equally. He commented that had the case of the plaintiff been reported the board which he led would have dealt with the matter.

Under cross examination the witness was referred to correspondence which referred to the plaintiff as a personal assistant to the witness as well as to the first defendant. In response he stated that he was not aware of that fact or that the plaintiff was carrying such a position either by conduct or by organogram. In relation to taking minutes of meetings of the executive committee and council, he testified that the CEO was supposed to take minutes but could delegate. He stated that such delegation did not result in the person so delegated becoming a personal assistant. He denied that the plaintiff arranged birthday celebrations for him. When put to the witness by the plaintiff that the second defendant did not act on her complaint, he responded that assuming that this was so, it was not him to blame. When the plaintiff put it to him that she showed him emails by the first defendant, he responded that women should not be treated like that, he then stated that his secretary addressed the plaintiff and told her that the matter was before the Labour Court and he could not deal with it. He denied that he told the plaintiff that as a married woman she should be ashamed to report sexual harassment. He noted and the plaintiff accepted that no formal written report was made to the second defendant about the complaint of sexual harassment.

The second defendant closed its case. Parties agreed to and filed written closing submissions. The real issue which arises in this matter is the liability of the second respondent on the plaintiffs claim. The evidence of sexual harassment is common cause and was not controverted. That, the first defendant sexually harassed the plaintiff must be taken as common cause as well. There was a judicial pronouncement and finding of this fact by the relevant courts. The parties inexplicably settled it as an issue for trial. It should not have been an issue because of prior determinations. Further and in any event, the plaintiff gave evidence of her sexual harassment by the first defendant. She stood by her allegations which understandably were not controverted by the second defendant.

As far as the liability of the second defendant, the plaintiff testified that she brought the issue to the attention of the President of the second defendant who promised to act but never took action. On follow up by the plaintiff the President was dismissive of the issue and told the plaintiff that as a married woman she should be ashamed to report sexual harassment perpetrated upon her. In other words, the implication of that statement was that the plaintiff should just let it pass. This aspect of the matter is critical because if the court finds that the plaintiff did not report the sexual molestations allegedly perpetrated upon her, that ends the matter as no duty of care would arise where the second defendant has no knowledge of the sexual harassment complained of.

The second defendant denied that it was made aware of the sexual harassment in question. Evidence was adduced on this aspect from the current Finance and Administration Manager of the second respondent. Although, he was not a bad witness in that his testimony could be followed, such testimony was of little or no evidential value. The witness suffered from a handicap that he was not in the second defendant's employment when the conduct complained of by the plaintiff was perpetrated.

He joined the second defendants' employ some nineteen to twenty years post the event. He purported to rely for his evidence on records of the second defendant. He testified that there was no record of any sexual harassment complaint on the issue or made by the plaintiff. He did not give any details of the nature of the records. He then went on to posit that the plaintiff should have reported to the immediate supervisor or senior. The reporting structures or grievance

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procedures were not produced to the court or established to have been available or their nature. Further it was not the plaintiff's case that she made a formal report in writing as would have been kept on record. Her case was that she verbally reported the sexual harassment to the second defendant's President and he took no action and was dismissive of the issue. The witness did not indicate who the plaintiff's

immediate supervisor was. He at most stated that the plaintiff could have reported to any of the executive committee members whom he did not identify. The evidence of the witness was to the court, one that was built on what the witness in his opinion expected the plaintiff to do and not what the plaintiff was supposed to do since the grievance handling structures of the second defendant were not established for the court to appreciate them.

It was a surprise though that the second defendant through this witness questioned whether the plaintiff was sexually harassed by the first defendant. Such attitude showed an uncaring and dismissive attitude. I say so because the sexual harassment issue was concluded by the court in the judgment of MAFUSIRE J aforesaid. In that judgment, the court noted that the liability of the second defendant remained to be resolved. The second defendant was party to the case and it is still the same case which continues. The position therefore is that the court did pronounce on whether or not the plaintiff was sexually harassed by the first defendant. It awarded the plaintiff damages. Liability was not made joint and several. The case remained that each party answers for itself. It was not necessary in this case to have to saddle the plaintiff with questioning whether she was sexually harassed. Even if it be argued that it was necessary, it has been recorded already that her testimony was not controverted. The witness then refused to comment on the courts judgments on the issue. One would have thought that the judgments were part of the company records which formed the source of his evidence but alas, he did not even speak to the arbitration and Labour Court proceedings which concerned sexual harassment. One then wonders what records were allegedly referred to or whether there were any records at all which the witness bothered to examine. The evidence of the witness was of little if any probative value on the real issues to be determined.

The plaintiff testified that she made a verbal report of the sexual harassment to the second defendant's president. The President testified. He was asked whether he dealt with the plaintiff in the context of her employment with the second defendant. His response was that he did not recall because of time gone by. He however, recalled that the plaintiff came to his office after his tenure as President of the second defendant but he refused to see her. When it was put to him that the plaintiff was alleging that she reported to him the sexual harassment perpetrated on her by the first defendant, he responded that he did not recall the specific issue that she came to report on or whether it was a sexual harassment case. When further put to him that he first promised an

investigation then changed stance and told the plaintiff that she should be ashamed as a married woman to report sexual harassment he responded that he did not recall making such a statement or having knowledge the plaintiff reported sexual harassment.

The witness denied that the plaintiff was her personal assistant and stated that she was the personal assistant of the first defendant. He testified that there was a laid down procedure whereby complaints are raised from down to up the ladder. He stated that no employee ever came to directly to him with a work issue. When asked to comment on the allegation by the plaintiff that the second defendant failed to protect her, he responded that the values of the second defendant included the protection of all employees and their equal and fair treatment. He stated that had there been a case as claimed by the plaintiff, the board would have dealt with it.

Under cross-examination the witness stated that he was not aware that the plaintiff was also his personal assistant or that such position existed in the second defendants' organogram. When put to him that he could not deny knowledge of the plaintiff because she was minute taker at executive council as well as executive committee meetings, the witness responded that the minute taker for the executive council or board meetings which the witness chaired or attended was the first defendant who could delegate the function. He stated that such delegation did not elevate the plaintiff to the witness's personal assistant.

The witness denied that he discussed celebrations of his birthday with the plaintiff. He denied that the plaintiff arranged for his birthday and stated that his birthday was public knowledge. He also denied that the plaintiff arranged for family celebrations of his birthday.

When it was put to him that the first defendant in arbitration proceedings deposed that the witness was actively involved in the plaintiff's recruitment, was impressed with her qualifications and experience and recommended that she be adequately salaried at a level commensurate with her experience, the witness simply responded that it was not his deposition but that of the first defendant. The witness was agitated when asked to comment on the notice of appeal to the Labour

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Court by the second defendant against the arbitral award of K Segula. The ground of appeal on which he was asked to comment read:

> "The Honourable Arbitrator grossly misdirected herself when she proceeded to determine the matter on the basis that no action had been taken against the second respondent following first respondents' report of the alleged sexual harassment."

The plaintiff was the first respondent in that matter. The witness answered with a question, "I have difficulties. Assuming there was no action by CZI are you implying it's me who did not cause it to act?" The court directed the witness to deal with the evidence and answer instead of asking a question. When the plaintiff put it to the witness that she approached him with the first defendant's e-mails and that after noting them, he responded that "we do not do that to women," he responded that at the time that the plaintiff went to see him, the matter was before the Labour Court and that for that reason, he could not take up the matter. He denied that he told the plaintiff that as a married woman she should be ashamed to report sexual harassment. He stated that he believed in gender balance and equality.

The plaintiff put it to the witness that the labour court proceedings were done in 2014 and that she could not have sought to report to the witness in 2014. The witness answered was:

> "I am still having a challenge. You came to my office to lay a complaint or a charge."

When told that the plaintiff went to the witness office to lay a complaint in his capacity as President, the witness asked whether the plaintiff put anything in writing to him to which the plaintiff responded that she made a verbal report and the witness promised to act on it. The witness in answer then stated "I think it does not assist the court to say I said, you said, we do not get anywhere." The witness did not specifically deny the plaintiffs contention by his answer which was a comment. There was no re-examination of the witness.

It has been recorded that the plaintiff gave a straightforward account of her complaint and stood by her pleadings. The second defendant's witnesses on the other hand were not convincing

in their testimonies. The first witness Magwayi did not have first-hand knowledge of the facts surrounding the matter, understandably so because he joined the second defendants employ long after the events in issue herein occurred. He purported to rely on records for information which he sought to give to the court. The records were not referred to or produced. In fact, he refused to commit himself because the matter if reported would have engaged the second defendant's board.

The court however believed the plaintiff's account. It was more probable. She was candid that at first, she was hesitant to report the sexual harassment for fear of losing her job at a time she was vulnerable with a sick father. After realising that the sexual harassment did not abate, she resolved to approach the President of the second defendant as the person who would be her salvation and presented to him evidence of offensive and suggestive emails generated by the first defendant. The plaintiff's account is the more probable one. It made logic and common sense for the plaintiff to take the matter up with the second witness given the first defendants position. The second witness at first gave the imprison that he had never interacted with the plaintiff before accepting that he knew the plaintiff *albeit* maintaining that she did not make a report of the sexual harassment to him. It dawned on the court that the second defendant's second witness did not want personal blame to be placed on him for not having acted on the report. With seeming hostility, he asked the plaintiff whether she was placing personal blame on him for alleged non action on her sexual harassment claims by the second defendant. This question suggested that his attitude was to distance himself from blame. It was therefore convenient for him to be aloof and the easiest way to do so was to deny knowledge of the sexual harassment nor that it was reported to him. The credibility of the second witness was questionable. He did not impress the court with his denials of having been approached by the plaintiff with the sexual harassment complaint. The court disbelieved his denials and accepted the plaintiff's account.

The second witness was key because it is the plaintiff's case that she approached him with her verbal complaint on the sexual harassment she complains of and produced evidence of e-mails to the witness who promised to act but did not do so. He prevaricated on his evidence on material issues. He first denied knowing the plaintiff prior to his leaving the second defendant in 2005. He testified that the plaintiff came to see him after he refused to entertain her. He then

changed and stated that when the witness came to see him, he refused to entertain her on the basis that the matter was before the Labour Court. He denied that he had anything to do with the plaintiff's recruitment. When asked to comment on the first defendant's deposition of his active involvement, he simply stated it was not his deposition. He also seemed agitated and stated that if the second defendant did not act on the complaint that did not mean that it was him who caused the second defendant not to act. The witness gave the impression that he did not want to be bothered by this case. Even though the courts had already determined that the plaintiff was sexually harassed, the witness did not appear to have considered that fact at all and gave the impression that nothing happened to the plaintiff.

Following on the court's finding that the plaintiff verbally reported the sexual harassment to the second defendant through the second defendant's president who gave evidence and was disbelieved by the court, it follows that the second defendant must be and is hereby held to have become of the sexual harassment which was perpetrated on the plaintiff by the first defendant.

The next issue as settled by the parties is whether or not the second defendant had a legal duty to protect the plaintiff against sexual harassment. This issue does not detain the court. Both the witnesses for the second defendant did not raise any issue about this. They in fact testified that sexual harassment did not have a place at the second defendant's workplace. The second defendant's second witness testified that the sexual harassment report against the first defendant had it been reported would have been an issue that the executive council would have dealt with. Both witnesses for the second defendant spoke to the need for the plaintiff to have made a report through the channels thus implying that sexual harassment was conduct unacceptable at the second defendant's workplace. In leading evidence of the witnesses, the issue of whether or not a legal duty existed suffering the second defendant to protect employees from sexual harassment was not raised or suggested. In the closing submissions the second defendant's counsel did not suggest otherwise on whether or not the second defendant had a legal duty to protect the plaintiff against sexual harassment. The second defendant had such duty and still has it by law *albeit* now in regard to employees in its employ and not the plaintiff. The second defendant's witnesses would not have testified that the plaintiff should have reported the sexual harassment unless the second defendant had a legal duty to protect employees against sexual harassment. Sexual harassment was subject of disciplinary action. It is therefore surprising that the second defendant

sought to argue otherwise. Since the duty to act on sexual harassment and a *fortiori* to protect the employee was a point adduced by the plaintiff and not controverted by the second defendant, it becomes common cause as it is in fact so.

The submission by the second defendant's counsel in the heads of argument that there was nothing placed before the court to suggest that the second defendant had a legal duty to take action to prevent the sexual harassment before it ensued was not the plaintiff's case. The case was that after she reported the sexual harassment, no action was taken by the second defendant.

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The plaintiff testified that the second defendant further provided the first defendant with services of a legal practitioner or paid for such services in the case brought by the plaintiff for sexual harassment. She also testified that the second defendant did not take disciplinary action against the first defendant. The second defendant's counsel submitted that the plaintiff's testimony in this regard amounted to pleading a new case contrary to the law set out in *Mashonaland Tobacco*

Co Pvt Ltd v *Mahem Farms Pvt Ltd and Anor* SC 152/20 p 9 it is stated

> "as a general rule; judgment cannot be granted on a cause of action that is not pleaded. The pleadings must clearly set out the precise parameters of the issues contested between the parties"

In my view, the evidence that the second defendant supported the first defendant through payment of fees to resist the claim for sexual harassment whilst not taking action against the first defendant meant that the second defendant made common cause with the first defendant. In such circumstances the second defendant cannot escape vicarious liability because it made a choice to support the first defendant against the plaintiff in relation to the sexual harassment allegations made by the plaintiff.

The Labour Act [*Chapter 28:01*] in section 8(h) provides as follows

> "**8. Unfair labour practices by employer**
> An employer or, for the purpose of paragraphs (g) and (h), an employer or any other person, commits an unfair labour practice if, by act or omission, he—
> (a)-(g)……

> (h) engages in unwelcome sexually determined behaviour towards any employee, whether verbal or otherwise, such as making physical contact or advances, sexually coloured remarks, or displaying pornographic materials in the workplace."

An employer must therefore maintain a safe working environment and take steps to prevent sexual harassment of the employees. Sexual harassment policies are put in place at the work place because the employer has a legal duty to safeguard and protect employees against sexual harassment. The employer must act to end sexual harassment where it comes to the employer's knowledge and to punish the errant employee who has committed sexual harassment in addition to showing sympathy and support to the injured employee if victim. The second defendant failed to uphold its legal duty in that regard and not only treated the report by the plaintiff lightly and/or dismissively but continued to protect the first defendant by funding his defences in the law suits wherein the first defendant was being sued in causes brought by the plaintiff arising out of the same harassment facts.

The second defendant has been unrepentant and belligerent to the end. Despite the courts having determined that the plaintiff was sexually harassed by the first defendant at the workplace, the second defendant argued that it was in fact the victim of financial prejudice in that the first defendant awarded the plaintiff an undue salary increase. It was submitted that the second defendant suffered "collateral damage" of loss of money. The second defendant did not however lead any evidence to prove the allegations that the plaintiff was given an undue preference in the form of a salary increase which was not due. The second defendant tried to twist the plaintiff's evidence that the first defendant in the course of his sexual harassment behaviour towards the plaintiff told the plaintiff that he was in trouble for awarding her a salary increase. The second defendant did not place any facts to establish the level of the salary increase given to the plaintiff. It did not lead evidence of the amounts of the salaries before and after the alleged undue increases. The second defendant has therefore not been apologetic or shown remorse. The second defendant did not do the basic of what was expected of it, which was to at least produce the plaintiff's contract of employment. This would have reflected her salary as well as provide an answer to the issue of the disputed position of the plaintiff being the personal assistant to both the first defendant and the second defendant president.

The second defendant submitted that the first defendant was acting on a frolic of his own, and that vicarious liability did not apply because the first defendant completely derelicted his

duty to uphold the integrity of the second defendant policies and procedures. What the second defendant did not submit on is what the position ought to be where the second defendant is found to have been made aware of the sexual harassment, but refrains from acting on it and thus fails to protect the plaintiff. Such conduct would amount to acquiescence with the result that second defendant is estopped from distancing itself from the delict committed by the first defendant. It is so in this case. The second defendant made cause with the first defendant by inaction in the face of the reported sexual harassment. It further supported the first defendant in his defence on the matter and thus lacked neutrality and gave undue preference to the first defendant. The second defendant in consequence breached its legal duty to protect the plaintiff against sexual harassment.



In relation to the question of whether the second defendant in vicariously liable for damages to the plaintiff arising from the sexual harassment which is the penultimate issue from the agreed issues, this has been answered by the finding that the second defendant by inaction whilst in the know as well as assisting the first defendant to defend legal proceedings in matters wherein the plaintiff alleged sexual harassment and in not making its own investigations and taking disciplinary measures against the first defendant if merited, it made common cause with the first defendant.

It is also correct as submitted by the plaintiff in closing submissions that the employer's failure to provide a safe working environment makes the employer liable in damages as in this case for the sexual harassment perpetrated by the first defendant upon the plaintiff. In the case of *Media 24 Ltd and Anor* v *Grobler* 2005(6) SA 328 (SCA) the South African Supreme Court had to decide on the question of delictual liability of the employer for sexual harassment of a female employer by a trainee manager on the basis of the negligent breach by the employer of the legal duty to maintain a working environment on which employees are not subject to sexual harassment. In paragraph 65 of the judgment, it is stated

"[65] It is well settled that an employer owes a common law duty to its employees to take reasonable care for their safety. (See, eg, Van Deventer v Workman's Compensation Commissioner 1962 (4) SA 28 (T) at 31B-C and Vigario v Afrox Ltd 1996 (3) SA 450 (W) at 463F-I). This duty cannot in my view be confined to an obligation to take reasonable steps to protect them from physical harm caused by what may be called physical hazards. It must also in appropriate circumstances include a duty to protect them from psychological harm caused, for example, by sexual harassment by coemployees."

In paragraph 67 and 68 it is stated in part in the same judgment as follows

"[67] In determining the legal convictions of the community in regard to sexual harassment in the workplace it is appropriate to have regard to what was said on the topic by De Kock M in J v M Ltd (1989) 10 ILJ 755 (IC) at 757G-758D:……. Sexual harassment, whether it be between members of the opposite sex or of the same sex is, despite the fact that it is often a subject for uncouth jokes, a serious matter which does require attention from employers. Sexual harassment, depending on the form it takes, will violate that right to integrity of body and personality which belongs to every person and which is protected in our legal system both criminally and civilly. An employer undoubtedly has a duty to ensure that its employees are not subjected to this form of violation within the work-place……..

[68] It is clear in my opinion that the legal convictions of the community require an employer to take reasonable steps to prevent sexual harassment of its employees in the workplace and to be obliged to compensate the victim for harm caused thereby should it negligently fail to do so. I do not think that the fact that the legislature has enacted legislation providing a statutory remedy for unfair labour practices involving sexual harassment justifies a holding that, absent the statutory remedy (which presumably was intended to be quicker, cheaper and more convenient than the common law remedy), the common law is defective in failing to provide a remedy in a situation which cries out for one."

It follows from the reasoning above that the employer is liable for damages to the complainant for sexual harassment where it negligently breaches its duty to enable a safe working environment by not acting to protect the employee against sexual harassment. Vicarious liability in such a situation does not necessarily need to be proved or established. In the *Media 24* case *supra,* the issue of vicarious liability was left open. Although I have reasoned that it applies in this case, if I am wrong in so holding then still the second defendant is liable in damages for negligent breach of the legal duty to protect the plaintiff against sexual harassment in not acting on the report made to the second defendant's president. The argument by the second defendant's first witness as well as by the second witness that there was a standing protocol for complaints reporting whereby a complaint is made to the immediate supervisor and that the plaintiff did not follow the protocol to report the sexual harassment has no substance and is not a defence. It certainly would not make sense for the employer to say that it did not protect the employee because the employee reported the sexual harassment to a person other than his/her line manager

as supervisor. I would in this respect relate that it is the statutory duty of the employer in terms of the Labour Act to create and maintain a safe working environment for its employees and this duty cannot be avoided upon an argument that the employee did not report the sexual harassment in accordance with protocol or work place reporting regulations.

The last issue following the finding of the second defendants breach of the legal duty to protect the plaintiff against sexual harassment and/or the further finding that vicarious liability would apply to the facts of this case is the quantum of damages. Before assessing the quantum, there is need to briefly deal with a submission by the second defendant's counsel that the plaintiff sought to base her cause of action on a non-pleaded case. It was submitted that in the summons the plaintiff premised the second defendant's liability upon the alleged failure to prevent listed acts of sexual harassment from being perpetrated upon her. It was submitted the plaintiff now sought to attach liability based on the alleged lack of action after cessation of the sexual harassment by the first defendant.



It is true that a party is bound to its pleadings and that the court shall not grant judgment on an unpleaded case. Reference was made to this court's judgment in the case of *Nyaungwa* v *JEFFM Auctions (Pvt) Ltd and Anor* HH 146-24 wherein reliance was placed on the Supreme Court judgment in *Mashonaland Tobacco Co (Pvt) Ltd* v *Mahem Farms (Pvt) Ltd and Anor* SC 152-20 *supra*.

Admittedly the above cases expound the general rule. It is not cast in stone. For example, where in settling issues for trial an issue not specifically pleaded is raised as an agreed issue for determination, the trial court is bound to determine the issue and may not refuse to deal with it on the basis that the issue was not pleaded, provided that the issue was fully canvassed in the evidence and no party was prejudiced. The court has a discretion to determine such issue. A reference to the issues in this matter shows that issue 1-2 was "whether or not second defendant was aware of the sexual harassment and whether if so, the second defendant had a duty to protect the plaintiff from sexual harassment. The plaintiff's case is pleaded in paragraph 8 of the

declaration. It is not a case for special damages. She claimed general damages in paragraph 16 of the declaration as follows:

> "16] It from the above-mentioned background of events and the Arbitration Award in favour of the plaintiff, that the plaintiff prays for the following damages from the defendants jointly and severally, with the one paying the other to be absolved
>
> (a) The sum of US% 500 000.00 for shock, non-patrimonial damages, post traumatic disorder, pain and suffering.
> (b) Interest at the prescribed rate from the date of Arbitration Award to the date of full payment. (c) Costs of suit"

The plaintiff in the notice of amendment filed on 11 October 2024 to which the second defendant pleaded, reduced the quantum of damages to US$ 180 000.00 or the equivalent therefore in local currency convertible at the intermarket rate at the rate of payment.

The submission by the second defendant that the plaintiff seeks special damages and that she must specially prove them is misplaced, the plaintiff claimed general damages. Having been misdirected as to the nature if the damages sought by the plaintiff, the second defendants counsel did not controvert or challenge the plaintiff's claimed figures for general damages both in evidence and in submissions to the court.

The assessment of general damages is imprecise because they are general. There is no mathematical formular to be employed by the court. The assessment is in the nature of a value judgment reached after considering the pertinent facts and circumstances of an individual case. The second defendant did not take any steps to tone down the impact of the damages nor to question the nature of the sexual harassment. In not doing so, the second defendant did itself a disfavour. This is always the danger created by the form of pleading where a defendant states that he or she has no knowledge of allegations made by the plaintiff and puts the defendant to the proof thereof. It is not unusual for counsel to say "the defendant is put to the strictest proof thereof". What is meant by "strictest proof thereof" in civil procedure and practice remains treasured in the mind of the pleader who alleges so. When allegations are made against a defendant by the plaintiff rather than simply put the plaintiff to the proof thereof, the defendant is best protected if it investigates and challenges the allegations in substance.

There are not many cases in this jurisdiction on sexual harassment let alone cases where the employer is made to pay damages as opposed to the perpetrator. The cases of *Rita Marque Mbatha inter alia*, judgment No HH 93-16 by DUBE J (as then she was);SC 69/2018 per PATEL

JA(as then he was); HH 592-20 per MUNANGATI-MANONGWA J HH392-21 and HH 675-21 per MAFUSIRE J(as then he was) relate to sexual harassment in one context or another and involve the parties as herein. The cases show the various lengths to which the plaintiff went to assert her claims for damages for sexual harassment. It is the judgment of MAFUSIRE J which set the tone and is often taken as a landmark judgment in which the court awarded a princely sum of US$ 180 000.00 and as already alluded to, the plaintiff has now gone against the employer.

A consideration of the pleadings and the evidence does not show any inconsistency. It was the evidence of the second defendants witness, Mr Mandiwanza that the plaintiff approached him after he had ceased to be president of the second defendant. The court made a finding that the witness was untruthful in his narration and believed the plaintiff who gave a simple and straightforward narration of events and was not shaken under cross examination. Her demeanour was impressive. The plaintiff clearly pleaded in the amended declaration in relation to the second defendant's legal duty of care to her as follows in paragraph 2.

> "2. By the addition of paragraph 8(a) to the following effect:
> As the second (sic) defendant employer; Confederation of Zimbabwe Industries was under a legal duty to its employees in particular to the plaintiff to create and maintain a working environment in which the dignity of its employees would be respected and amongst other things, to take all reasonable steps to prevent its employees from being sexually harassed by other employees in their working environment."

In relation to the basis of liability, the plaintiff pleaded as follows in the amended declaration, the whole of which reads as follows

> " NOTICE OF AMENDMENT OF DECLARATION
> TAKE NOTICE THAT the Plaintiff hereby amends her declaration as follows:
>
> 1. By the addition of paragraph 6(a) to the following effect:
> the First Defendant was at that time employed as the Chief Executive by the Second Defendant.
> 2. By the addition of paragraph 8(a) to the following effect:
> As the Second Defendant's employer, Confederation of Zimbabwe Industries was under a legal duty to its employees, in particular to the Plaintiff, to create and maintain a working environment in which the dignity of its employees would be respected and, amongst other things, to take all reasonable steps to prevent its employees from being sexually harassed by other employees in their working environment.
> 3. By the addition of paragraph 8(b) to the following effect:
> As the employer of the First Defendant, the Second Defendant is vicariously liable for his actions in subjecting the Plaintiff to sexual harassment.
> 4. By the addition of paragraph 8(c) to the following effect:
> The Second Defendant is liable for sexual harassment of Plaintiff by the First Defendant.

5. By the addition of paragraph 8(d) to the following effect:

There was a negligent breach by employer of legal duty to maintain working environment in which employees not subject to sexual harassment. This duty had been breached because there had been a wrongful and negligent failure to prevent the Second Defendant from sexually harassing the Plaintiff.

Further,

a) the Second Defendant' President failed to come to the assistance of the [Plaintiff] notwithstanding her report and instead alleged that as a married woman she should be ashamed to report sexual harassment.
b) failed to act against the [First Defendant] notwithstanding the fact that she had reported sexual harassment;
c) failed to deal with allegations of sexual harassment against the [Second Defendant] seriously and expeditiously;
d) permitted the [Second Defendant] wide latitude in his conduct towards the [Plaintiff]
e) failed to create a climate in the workplace in which the victims of sexual harassment, in particular the [respondent], would not feel that their grievances were being ignored;
f) failed to take all or any reasonable steps to preserve and protect the bodily integrity, psychological well-being, mental tranquillity and dignity of [the Plaintiff]
g) the First Defendant was acting in the course of his employment and the scope of his duties as an employee and
h) failed to prevent the [First Defendant's] sexual harassment of the [Plaintiff] when such could and should have been prevented.

6. Further take notice that the Plaintiff amends paragraph 16(a) by deleting $5000,000-00 and substituting it with a sum of "USD180,000 or the equivalent therefore in local currency, convertible at the intermarket rate at the time of payment"

The second defendant pleaded to the amended declaration. In essence, it denied the existence of any duty of care towards the plaintiff. It averred that it took reasonable steps to ensure that a safe work environment prevailed at the work place. It averred that should it be found that the first defendant perpetrated sexual harassment on the plaintiff, he was on a frolic of his own. It denied that it negligently failed protect the plaintiff from sexual harassment. It further averred that there was no record at the workplace of any report by the plaintiff to the second

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defendant's president. It lastly pleaded that it did not aid or abet the first defendant in his behaviour of sexually harassing the plaintiff.

When one considers the amended declaration and resultant plea, the plaintiff's case was never that the she made a report of sexual harassment to the second defendant's president after she had left employment or after the second defendant's president had left employment. It was essentially that she was sexually harassed during the period of her employment and she reported her ordeal to the second defendant's president who promised ton take action but failed to do so. She pleaded that by failing to take any action to stop the sexual harassment, the second defendant breached the employer's legal duty to safeguard employees against sexual harassment.

The court's task to assess the general damages is in the nature of coming up with a value judgment that is informed by a consideration of the facts and circumstances of the individual case. It is noted that it was within the power of the second defendant to take appropriate measures to reign in the first defendant and protect the plaintiff against sexual harassment which the plaintiff reported to the second defendant's president who was dismissive of the plaintiff's report and told her to consider how embarrassing it would be for her as a married woman to pursue such an issue. Right to the end, the second defendant despite an extant ruling of this court that the first defendant sexually harassed the plaintiff was unsympathetic and unrepentant. For inexplicable reasons, the second defendant still required the plaintiff to prove that she was sexually harassed by the first defendant. The plaintiff had to go through harrowing experience once again. It was surprising as well that such attitude was persisted with despite it being common knowledge that the first defendant was ordered to pay the plaintiff US$ 180 000.00 as damages for sexual harassment damages in judgment HH 675-21. In short, the second defendant has not been apologetic despite the court's judgment. The want of an apology aggravates the amount of damages.

The plaintiff pleaded and testified to the nature or form of sexual harassment which she endured at the hands of the first defendant. Naturally with the second defendant not having investigated the alleged sexual harassment or taken action on it, it could not question or controvert the evidence. The evidence led by the plaintiff shows that she endured a harrowing experience at the hands of the first defendant.

The plaintiff set out the details of her suffering and consequences of the sexual harassment in paragraphs 13-15 as follows:

> "13] Plaintiff suffered severe psychological and psychiatric trauma which resulted in her experiencing some chronic emotional problems

> 14] Plaintiff further would experience bouts of severe headaches, was diagnosed with high blood pressure and would collapse at the office and at home due to the traumatic experiences at the hands of the first defendant.
>
> 15] Further the sexual harassment tainted her marriage to the extent that her husband has been separated with her in disbelief of what happened to her"

The second defendant in response pleaded the customary denial that the defendant has no knowledge of the allegations made, does not admit them and puts the plaintiff to the proof thereof. The plaintiff averred that the commission against her of the sexual harassment as pleaded by her had been determined in her favour by the Labour Court, High Court and Supreme Court. In pleading that the plaintiff did not have knowledge of the sexual harassment, that plea may have made sense in 2018. After delivery of judgment HH 93-16 by MAFUSIRE J on 13 February and to the extent that the judgment is extant, it would be insincere of the second defendant to argue that there was no evidence of sexual harassment and its details established by the plaintiff.

The sexual harassment of the plaintiff went on from January to September 2002 until her dismissal on 23 September 2003. She did not immediately report the sexual harassment until January 2003 because she feared to lose her job given that the perpetrator was not just her boss but the Chief Executive of the second defendant. She was vulnerable because her father was bedridden and seriously ill. She was responsible for his upkeep for his upkeep and medical bills. The sexual harassment was going on in January, she reported that to the second defendant's president. She averred that she provided the president with evidence of emails and messages sent by the first defendant. No action was taken. The failure to act aggravated the extent of the first defendant's abrogation of its legal duty of care as discussed.

The second defendant made a denial of the allegations and put the plaintiff to the proof thereof. However, at trial, the second defendant did not question the issue of the injuries or effects of the alleged sexual harassment by the first defendant against the plaintiff. The joint pre-trial conference minute did not raise the issue of whether or not the plaintiff experienced the effects she related to in the above paragraphs. The issue raised was the quantum.

The second defendant's moral blameworthiness is high. The conduct of the second defendant to not take action on the plaintiff's report is to be deprecated. Exemplary damages are called for to mark the court's disapproval against a deliberate violation by the employer of a statutory or legal duty. Again, the level of damages has no precedent in this jurisdiction. In the

judgment by MAFUSIRE J HH 675-21 aforesaid, the learned judge stated in the order that the first defendant's liability was "joint and several with the liability of the other person as may be found liable to the plaintiff in respect of the sexual harassment which is the subject of this judgment"

As I have already indicated, the second defendant did not plead the issue of the effect of the judgment against first defendant. I have taken note but could not venture into the issue as I cannot create an issue for parties.

The plaintiff has prayed for the same amount of damages. She was granted the same amount against the first defendant of US$ 180 000.00. The second defendants conduct is reprehensible because had the second defendant acted on the plaintiff's report as it should have, at least the matter would have been attended to and appropriate interventions made. I find the claim of US$ 180 000.00 to be justified to grant taking into account all the circumstances of this case.

The last issue which I deal with is the incidence of costs. Costs must follow the event in this matter. There is no justification to depart from the general rule that costs ordinarily follow the event.

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The following order is therefore made

IT IS ORDERED THAT:

1. The second defendant shall pay the plaintiff the sum of US$ 180 000.00 in ZiG calculated at the interbank rate from the date of judgment to the date of full payment.
2. The second defendant shall pay interest on the said sum of US$ 180 000.00 at

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the prescribed rate of 5% per annum from the date of judgment to the date of full payment.

3. The second defendant shall pay costs of suit.

Plaintiff in person
Gill, Godlonton and Gerrans, second defendant legal practitioners